

HOUSE No. 2622

The Commonwealth of Massachusetts

PRESENTED BY:

Jessica Ann Giannino

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to liquid or gas flammable material spills on public ways.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jessica Ann Giannino</i>	<i>16th Suffolk</i>	<i>1/15/2025</i>

HOUSE No. 2622

By Representative Giannino of Revere, a petition (accompanied by bill, House, No. 2622) of Jessica Ann Giannino relative to liquid or gas flammable material spills on public ways. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to liquid or gas flammable material spills on public ways.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 85 of the General Laws, as appearing in the 2020 Official Edition,
2 is hereby amended by adding the following section:-

3 Section 38. (a) Any person who in the operation of a commercial motor vehicle or trailer
4 used to deliver gasoline, oil or other flammable material who discharges or spills gasoline, oil or
5 other flammable material into or onto surface water or groundwater or any person who violates
6 any provision of this section or any rule adopted under the provisions of this section shall be
7 subject to a civil penalty not to exceed \$20,000 for each violation. Each day of a continuing
8 violation shall count as a separate violation. Civil penalties for violation adopted under this
9 section shall not accrue until the highway division of the Massachusetts Department of
10 Transportation provides notification of such violation. The attorney general may bring an action
11 for injunctive relief including a mandatory injunction.

(b) Said penalty shall be in addition to liability for costs incurred by the commonwealth or any municipality thereof for the cleaning and removal of the spill. The superior court department of the trial court shall have jurisdiction to enforce the provisions of this section. Any civil penalty imposed under the provisions of this section shall be paid over to the treasury of the municipality wherein the spill took place.

SECTION 2. Chapter 90 of the General Laws, as so appearing, is hereby amended by adding the following section:-

Section 64. (1) The department, as defined in section 1, shall set a schedule for surety bonds to be required from any commercial motor vehicle or trailer company that delivers gasoline, oil or other flammable material and any product suppliers or dealers of gasoline, oil or other flammable material to provide for emergency cleanup and provide for the protection of the environment from accidental intrusions and from purposeful evasion of any law, rule or regulation adopted under chapter 21E.

(2) The surety bonds shall compensate municipalities as obligee of such surety for the short and long-term remediation of a spill of gasoline, oil or other flammable material in excess of 100 gallons.

SECTION 3. Notwithstanding any special or general law to the contrary, the secretary of public safety, in consultation with the secretary of labor, the secretary of transportation, and the UMass Amherst Transportation Center shall conduct a study of spills involving gasoline, oil or other flammable material by commercial motor vehicles or trailers on public ways. The study shall include, but not be limited to:

(i) the costs and benefits of companies paying drivers of commercial motor vehicles or trailers an hourly wage versus being paid per load;

(ii) analysis comparing accidents by drivers of commercial motor vehicles or trailers, that lead to spills, who are paid an hourly wage versus drivers being paid per load;

(iii) analysis of possible increase speeds by drivers of commercial motor vehicles or trailers who are paid per load compared to drivers paid an hourly wage;

(iv) effects on drivers of commercial motor vehicles or trailers delivering gasoline, oil or other flammable material after spills and if they are more likely to cause a spill in the future;

(v) impacts spills of gasoline, oil or other flammable material have on road safety;

(vi) the long term effect gasoline, oil or other flammable material spills have on the local ecosystem and financial costs to cities and town to repair damages after cleanup of the spill; and

(vii) methods to prevent and mitigate spills of gasoline, oil or other flammable material on public ways.

The secretary of public safety shall file a report of the study and any recommended legislation with the clerks of the house of representatives and the senate and the chairs of the joint committee on transportation, no later than 1 year after passage of this act.